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Board of Education Report

File #: Rep-152-24/25, **Version:** 1

Denial of the Renewal Petition for Crete Academy [PUBLIC HEARING]

January 14, 2025

Charter Schools Division

Action Proposed:

Adopt the denial of the renewal petition for Crete Academy (“Charter School”), located in Board District 1 and Region South, and adoption of the attached Findings of Fact in Support of Denial of the Renewal Charter Petition for Crete Academy. The school’s renewal petition includes a reduction in enrollment capacity from 363 to 355.

Background:

Crete Academy is a TK-6 school currently serving 283 students on two private facilities at 6103 Crenshaw Blvd., Los Angeles, CA 90043, and 1729 W. Martin Luther King Jr. Blvd., Los Angeles, CA 90062 in Board District 1 and Region South. Crete Academy was originally approved by the LAUSD Board of Education on November 15, 2016. Pursuant to Education Code section 47607.4, all charter schools whose term expires on or between January 1, 2022, and June 30, 2025, inclusive, shall have their term extended by two years, and all charter schools whose term expires on or between January 1, 2024, and June 30, 2027, inclusive, shall have their term extended by one additional year. Thus, by operation of law, the charter term for Crete Academy expires June 30, 2025.

On October 17, 2024, Crete Academy submitted its charter renewal petition application to the Charter Schools Division seeking to continue operations of its independent charter school. The 90-day statutory timeline for Board action on this petition runs through January 15, 2025.

An initial Public Hearing was held on December 10, 2024.

Based on a comprehensive review and assessment of Charter School’s renewal petition application and its record of performance, staff has determined that Charter School has not met the requirements set forth in Education Code sections 47605 and 47607.2 and therefore recommends denial of the renewal petition.

Due Diligence:

Current Crete Academy governing board members completed questionnaires so the District may assess whether any conflicts of interest arise based on the information provided. A due diligence review of the charter school and its governing organization, school leader and financial manager, was performed by the Office of the Inspector General.

Statutory Framework and Criteria for Renewal:

A charter school must demonstrate that it is eligible for a renewal of its charter by meeting specific renewal criteria outlined in the Charter Schools Act. The renewal criteria prescribed in Education Code sections 47607 and 47607.2 requires a three-pronged analysis:

Criterion 1: The Charter Schools Act provides that renewals are governed by the standards and criteria described in Education Code section 47605 applicable to initial petitions. The first criterion considered in reviewing a renewal petition requires an analysis of the following:

- Whether the petition includes a sound educational program;
- Whether the petition contains a reasonably comprehensive description of the 15 elements required for petitions;
- Whether the petition contains an affirmation of each of the conditions described in Education Code section 47605(e); and
- Whether the charter school is likely to successfully implement the program set forth in the petition. Education Code section 47607(b) provides that renewals are governed by the standards and criteria described in section 47605 applicable to initial petitions. (The Board may not consider the community impact analysis or District fiscal analysis in determining whether to grant or deny a renewal petition).

Criterion 2: The Board is required to consider the charter school's performance on the California School Dashboard accountability indicators. Education Code sections 47607 and 47607.2 prescribe three-tiers of performance classification in which a charter school falls within one of the following categories - "high," "middle," or "low." The three-tier classification considers a charter school's performance on the California School Dashboard accountability indicators, with an emphasis on the measurements of academic performance.

Criterion 3: Notwithstanding Criterion 1 and 2, the Board must also consider whether the charter school's enrollment or dismissal practices are discriminatory as grounds for nonrenewal. (Ed. Code, § 47607 (e).) Additionally, the Board considers whether the charter school has substantial fiscal or governance factors as grounds for nonrenewal. (Ed. Code, § 47607(e).)

Grounds for Nonrenewal:

- Staff of the Charter Schools Division and the Office of the General Counsel reviewed the renewal charter petition application for Crete Academy and have assessed that the renewal petition application does not meet the criteria for approval. As fully discussed in the attached Findings of Fact in Support of Denial of the Renewal Charter Petition for Crete Academy, based on review of the petition and supporting documentation, staff has determined, Charter School shall not renew as a Low performing charter school based on performance indicators and pursuant to the statutory renewal framework. (Ed. Code § 47607.2(a).) Additionally, Petitioners are demonstrably unlikely to successfully implement the program set forth in the petition. (Ed. Code § 47605(c)(2).)

Expected Outcomes:

Denial will prevent the Charter School from continuing its operations as a charter school under the authority of the Board.

Board Options and Consequences:

"Yes" - If the Board adopts the recommendation of denial and the attached Findings of Fact in Support of Denial of the Renewal Charter Petition for Crete Academy, Charter School would not be authorized to continue operating as a charter school under the authority of the Board. Charter School's current charter expires on June 30, 2025. The petitioners may appeal a denial to Los Angeles County Board of Education. If the petition is approved on appeal by the Los Angeles County Board of Education, Charter School would be authorized by the Los Angeles County Board of Education. If the Los Angeles County Board of Education denies the renewal petition, the petitioners may appeal that denial to the California State Board of Education. If the denial of the

renewal petition is reversed by the California State Board of Education, the California State Board of Education shall designate, in consultation with the petitioners, either the LAUSD Board or the Los Angeles County Board of Education as the chartering authority. This Board Report No. xxxx, accompanying documents, and transcript of the Board meeting, shall constitute the Board of Education's adopted written findings of fact for the denial of Charter School renewal petition.

"No" - If the Board does not adopt the recommendation of denial of the charter petition and the attached Findings of Fact in Support of Denial of the Renewal Charter Petition for Crete Academy, and instead takes specific action to approve the renewal charter petition, Charter School would be authorized to continue operating as a charter school under the terms of the approved renewal petition, consistently with the Board's action and direction, for a two (2) year period beginning July 1, 2025. Within 30 days, the Board requires that the school submit to the Charter Schools Division a revised renewal charter petition that meets all LAUSD requirements, including but not limited to a reasonably comprehensive description of all fifteen required elements and compliance with current Federal, State, District Required Language. This Board Report No. xxxx, accompanying documents, and transcript of the Board meeting, shall constitute the Board of Education's adopted written factual findings for the approval of Charter School's renewal petition consistent with Education Code section 47607.2(a)(4).

Policy Implications:

All provisions in the FSDRL shall be consistent with and be governed by all applicable legal and District policy requirements. To the extent any inconsistency may exist between any provision contained in the FSDRL and any applicable legal and District policy requirement, those applicable legal and District policy requirements shall control and the FSDRL shall be updated accordingly.

Budget Impact:

The Local Control Funding Formula (LCFF) and various other income sources of the District are reduced when current District students enroll at a charter school, and corresponding reduction in expenditures may not occur in such cases. If the Board adopts staff recommendation of denial of the petition, the action will not have a budget impact. If the Board does not adopt the staff denial recommendation and the petition is approved, the impact on the budget will be commensurate with the terms of the specific Special Education Local Plan Area (SELPA) Memorandum of Understanding (MOU) (Option 1, 2, or 3) executed by the charter school and the District, if applicable.

Under Education Code section 47604(d), a chartering authority that grants a charter to a charter school to be operated as or by a nonprofit public benefit corporation is not liable for the debts or obligations of the charter school or for claims arising from the performance of acts, errors, or omissions by the charter school, if the chartering authority has complied with all oversight responsibilities required by law including, but not limited to, those required by Education Code section 47604.32 and Education Code section 47605(m). As the chartering authority, the District will continue to monitor and evaluate the charter school's fiscal condition and operations, and management of public funds, including review of all legally required fiscal reports, and the annual update of the charter school's LCAP. (Ed. Code, §§ 47604.32, 47604.33, 47606.5.) Any significant modifications to the charter school's charter or operations that raise financial implications would require a material revision prior to implementation. Charter schools are expected to secure and maintain all insurance coverage consistent with all applicable legal, District and charter requirements.

Charter School has selected LAUSD Special Education Local Planning Area (SELPA) Option 1. The District shall retain all state and federal special education funding allocated to the SELPA for Charter School students.

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The District shall be responsible for providing all appropriate special education and related services in accordance with applicable state and federal laws for Charter School students as set forth in the applicable MOU. The parties understand and agree that Charter School has an equitable financial contribution obligation under section 47646 of the Education Code. Charter School's fair share contribution for special education is 25% of the District's general fund contribution rate per Average Daily Attendance (ADA) for the first fiscal year of the charter petition period which is paid from Charter School's Local Control Funding Formula ("LCFF") funds or other unrestricted revenue sources. This formula will increase by 5% for each fiscal year until the applicable percentage reaches 35%. For the remainder of Charter School's petition period, the rate will remain at 35% of the District's general fund contribution rate for each fiscal year. If Charter School is renewing its charter petition and has reached the 35% fair share contribution rate for special education, Charter School shall continue to contribute at the 35% rate for the full renewal period.

Any change in the Option election that occurs during Charter School's charter term shall be mutually agreed upon and addressed in an MOU between the charter school and the District. The new Option election shall be effective on July 1 of the next school year with the corresponding fair share contribution.

Student Impact:

As stated in the LAUSD Policy and Procedures for Charter Schools, "[W]hen the LAUSD Board authorizes and oversees a charter school, it establishes a relationship to advance its vision and mission and to accelerate gains in academic achievement and accountability for all of its students and public schools," (Policy, p.3). Based on a comprehensive review and assessment of Charter School's renewal petition application, staff has determined that Charter School has not met the requirements for charter school approval, and therefore recommends denial of the renewal petition.

Equity Impact:

Not applicable

Issues and Analysis:

If all applicable pending issues, including but not limited to special education requirements, special education local planning area (SELPA) requirements, governance, fiscal and facilities matters, are not resolved at the time of the Board meeting, the item may be pulled from the agenda as consistent with the Charter Schools Act and the LAUSD Policy and Procedures for Charter Schools.

Attachments:

Attachment A - Staff Assessment and Recommendation Report

Attachment B - Crete Academy Data Set

Attachment C - Findings of Fact in Support of Denial of the Renewal Charter Petition for Crete Academy

Budget and Petition will be available prior to the board meeting at the following link:

https://drive.google.com/drive/folders/1qNoyjCjrYTmc0TF7kgx7_1eppGjigssz?usp=drive_link

Informatives:

Not applicable

Submitted:

12/10/24

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RESPECTFULLY SUBMITTED,



ALBERTO M. CARVALHO
Superintendent

APPROVED & PRESENTED BY:



VERONICA ARREGUIN
Chief Strategy Officer
Office of the Chief Strategy Officer

REVIEWED BY:



DEVORA NAVERA REED
General Counsel

☒ Approved as to form.

APPROVED & PRESENTED BY:



JOSÉ COLE-GUTIÉRREZ
Director
Charter Schools Division

REVIEWED BY:



NOLBERTO DELGADILLO
Deputy Chief Business Officer, Finance

☒ Approved as to budget impact statement.

STAFF ASSESSMENT AND RECOMMENDATION REPORT

RENEWAL PETITION

Board of Education Report 152-24/25
January 14, 2025

School Name:	Crete Academy			BOARD IS REQUIRED TO TAKE ACTION BY: January 15, 2025
Type of Charter School:	Start-Up Independent Charter School			
Charter Operator	Crete Academy			
Location Code:	7550			
Type of Site(s):	(1) Private (2) Private			
Site Address(es):	(1) 6103 Crenshaw Blvd., Los Angeles, CA 90043 (2) 1729 W. Martin Luther King Jr. Blvd., Los Angeles, CA 90062			
Board District(s):	1	Region(s):	South	
Grade Levels Served:	TK-6	Current Enrollment:	283	
Grade Levels Authorized in Current Charter:	TK-6	Approved Enrollment in Current Charter:	363 (see proposed change in “Action Proposed”)	
CONSIDERATION:	Renewal			
CDE PERFORMANCE CATEGORY: (PER CDE’S 2024 CLASSIFICATION)	Low Performing			
STAFF RECOMMENDATION:	Denial			
PROPOSED BENCHMARKS:	None			

STAFF ASSESSMENT

I. ACTION PROPOSED

Staff recommends denial of the renewal petition for Crete Academy (“Crete” or “Charter School”), located in Board District 1 and Region South, for a term of two (2) years, beginning July 1, 2025, until June 30, 2027, to serve up to 355 students in grades TK-6 in each year of the charter term. The school’s renewal petition includes a reduction in enrollment capacity from 363 to 355.

II. RENEWAL REQUIREMENTS

Upon submission, District staff comprehensively reviews each renewal petition application to determine whether the school has met the requirements for renewal set forth in Education Code sections 47605, 47607, 47607.2, and 47611.5.

Criteria for Charter School Renewal and Grounds for Nonrenewal

As part of staff’s holistic review of the renewal petition application, the charter school must be determined to be eligible for renewal of its charter under the specific renewal criteria outlined in the Charter Schools Act. The renewal criteria prescribed in Education Code sections 47607 and 47607.2 requires a three-pronged analysis:

- **Criterion 1:** Does the renewal petition include a sound educational program, a reasonably comprehensive description of the 15 elements required for petitions, an affirmation of each of the conditions described in Education Code section 47605(e), and are petitioners likely to successfully implement the program set forth in the petition? (Ed. Code, § 47607(b).)

For reasons more fully set forth in the *Findings of Fact in Support of Denial of the Renewal Charter Petition for Crete Academy*, these criteria have been determined to be bases for denial.

- **Criterion 2:** Is the charter school “high,” “middle,” or “low” performing? (see Ed. Code, §§ 47607(c), 47607.2(a), and 47607.2(b).) Has the charter school attained measurable increases in academic achievement schoolwide and for numerically significant student groups served by the charter school, and does the charter school have strong postsecondary outcomes, if applicable? **For reasons more fully set forth in the *Findings of Fact in Support of Denial of the Renewal Charter Petition for Crete Academy*, these criteria have been determined to be bases for denial.**
- **Criterion 3:** Is the charter school serving all pupils who wish to attend, or does the charter school have substantial fiscal or governance issues? (Ed. Code, § 47607(e).)
These criteria have been determined not to be bases for denial.

Charter Petition Requirement:

In accordance with Education Code section 47611.5, a charter school charter shall contain a declaration regarding whether or not the charter school shall be deemed the exclusive public school employer of the employees at the charter school for the purposes of Section 3540.1 of the Government Code, and that declaration shall not be materially inconsistent with the charter.

- Does the petition contain a declaration of whether or not the charter school shall be deemed the exclusive public employer of the employees of the charter school?
This requirement has been determined not to be a basis for denial.

III. GENERAL SCHOOL INFORMATION

A. School History

	Crete Academy
Initial Authorization:	On November 15, 2016, Crete Academy was authorized by the LAUSD Board of Education to serve 363 students in grades TK-6.
Most Recent Renewal	Not applicable
Approved Material Revisions of Current Charter:	Not applicable
Board Benchmarks in Current Charter Term:	Not applicable
Submission of Renewal Petition Application:	Crete Academy submitted its renewal petition application on October 17, 2024. The 90-day statutory timeline for Board action on the petition runs through January 15, 2025.

	Crete Academy
Concurrent Request for Material Revision:	Not applicable
Master Plan for English Learners and Standard English Learners:	Crete Academy implements the LAUSD Master Plan for English Learners and Standard English Learners.
Special Education SELPA	Crete Academy participates in LAUSD Special Education Local Plan Area (SELPA) Option 1.

B. Charter School Operator

Crete Academy is operated by Crete Academy, a California nonprofit public benefit corporation that does not operate any other LAUSD-authorized charter school.

IV. STUDENT ACHIEVEMENT AND EDUCATIONAL PERFORMANCE

a. Summary

Crete Academy has been identified by the state as a Low performing charter school. The recommendation for renewal has considered the schoolwide performance and performance of numerically significant student groups and the state and local indicators reported on the California School Dashboard, and whether there was clear and convincing verified data evidence showing the school demonstrated measurable increases in academic achievement, as defined by at least one year's progress in each year in school, and/or strong postsecondary outcomes, as applicable. The school did not attain measurable increases in academic achievement schoolwide and for numerically significant student groups. Please see the *Findings of Fact in Support of Denial of the Renewal Charter Petition for Crete Academy* for more details.

b. Measurements of Academic Performance on the California School Dashboard

Due to the COVID-19 pandemic, the 2022 Dashboard only displayed one year of data (also known as Status). Status Levels are reported based on the 2021-2022 school year data using one of five Status Levels (ranging from Very High, High, Medium, Low, and Very Low) for state measures. Please note that the Status Levels associated with the Chronic Absenteeism and Suspension Rate Indicators are reversed (ranging from Very Low, Low, Medium, High, and Very High). Below, the 2023 and 2024 Dashboard Performance Levels (colors) based on two years' data are provided.

Crete Academy Dashboard Indicators

School Year	ELA	Math	English Learner Progress	College/Career	Chronic Absenteeism	Graduation Rate	Suspension Rate
2021-2022	Very Low	Very Low	High	Not available	Medium	Not available	Very Low
2022-2023	Orange	Red	No Performance Color	Not available	Green	Not available	Blue
2023-2024	Red	Red	No Performance Color	Not available	Red	Not available	Orange

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>) and CA School Dashboard

c. English Language Arts Indicator

For the last three years in English Language Arts (ELA), the charter school's Distance from Standard (DFS) was lower than the state for All Students, and lower than the state for all numerically significant student groups.

Crete Academy - English Language Arts Indicator - 2021-2022

Student Group	Charter Participation Rate	Charter Level	Charter ELA (DFS)	State Level	State ELA (DFS)	Charter to State Comparison (DFS)
All Students	Met	Very Low	-106.2	Low	-12.2	Lower
Black or African American	Not Met	Very Low	-108.4	Low	-57.7	Lower
Latino	Met	Very Low	-110.1	Low	-38.6	Lower
Socioeconomically Disadvantaged	Met	Very Low	-106.3	Low	-41.4	Lower

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Crete Academy - English Language Arts Indicator - 2022-2023

Student Group	Charter Participation Rate	Charter Color	Charter ELA (DFS)	Charter Change	State Color	State ELA (DFS)	Charter to State Comparison (DFS)
All Students	Met	Orange	-94.2	12.0	Orange	-13.6	Lower
Black or African American	Met	Orange	-97.6	11.7	Orange	-59.6	Lower
Latino	Met	Orange	-88.6	21.4	Orange	-40.2	Lower
Socioeconomically Disadvantaged	Met	Orange	-95.8	10.5	Orange	-42.6	Lower

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Crete Academy - English Language Arts Indicator - 2023-2024

Student Group	Charter Participation Rate	Charter Color	Charter ELA (DFS)	Charter Change	State Color	State ELA (DFS)	Charter to State Comparison (DFS)
All Students	Met	Red	-102.6	-8.4	Orange	-13.2	Lower
Black or African American	Met	Red	-104.0	-6.4	Orange	-58.9	Lower
Latino	Met	Red	-98.3	-9.7	Orange	-39.3	Lower
Socioeconomically Disadvantaged	Met	Red	-101.3	-5.5	Orange	-40.9	Lower
Homeless	Met	No Performance Color	-101.5	23.0	Red	-70.4	Lower

Data Sources: CA School Dashboard

d. Math Indicator

In 2022 in Math, the charter school's DFS was lower than the state for All Students, and lower than the state for two of three numerically significant student groups. In 2023 and 2024 in Math, the charter school's DFS was lower than the state for All Students, and lower than the state for all numerically significant student groups.

Crete Academy - Math Indicator - 2021-2022

Student Group	Charter Participation Rate	Charter Level	Charter Math (DFS)	State Level	State Math (DFS)	Charter to State Comparison (DFS)
All Students	Met	Very Low	-101.1	Low	-51.7	Lower
Black or African American	Met	Very Low	-106.3	Very Low	-106.9	Higher
Latino	Met	Very Low	-95.8	Low	-83.4	Lower
Socioeconomically Disadvantaged	Met	Very Low	-100.0	Low	-84.0	Lower

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Crete Academy - Math Indicator - 2022-2023

Student Group	Charter Participation Rate	Charter Color	Charter Math (DFS)	Charter Change	State Color	State Math (DFS)	Charter to State Comparison (DFS)
All Students	Met	Red	-107.9	-6.8	Orange	-49.1	Lower
Black or African American	Met	Red	-113.1	-6.8	Red	-104.5	Lower
Latino	Met	Red	-96.1	-0.3	Orange	-80.8	Lower
Socioeconomically Disadvantaged	Met	Red	-110.2	-10.2	Yellow	-80.8	Lower

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Crete Academy - Math Indicator - 2023-2024

Student Group	Charter Participation Rate	Charter Color	Charter Math (DFS)	Charter Change	State Color	State Math (DFS)	Charter to State Comparison (DFS)
All Students	Met	Red	-110.8	-2.9	Orange	-47.6	Lower
Black or African American	Met	Red	-112.3	0.8	Red	-102.2	Lower
Latino	Met	Red	-106.8	-10.6	Orange	-79.2	Lower
Socioeconomically Disadvantaged	Met	Red	-109.4	0.8	Orange	-78.2	Lower
Homeless	Not Met	No Performance Color	-107.6	21.7	Red	-106.0	Lower

Data Sources: CA School Dashboard

e. English Learner Progress Indicator

There is no performance level on the ELPI due to the low number of English Learners.

Crete Academy - English Learner Progress Indicator - 2021-2022

Student Group	Charter ELPAC Participation Rate	Charter Level	Charter EL Progress Rate	State Level	State EL Progress Rate	Charter to State Comparison
English Learner	Not Met	No Performance Level	57.1%	Medium	50.3%	Higher

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Crete Academy - English Learner Progress Indicator - 2022-2023

Student Group	Charter ELPAC Participation Rate	Charter Color	Charter EL Progress Rate	Charter Change	State Color	State EL Progress Rate	Charter to State Comparison
English Learner	Not Met	No Performance Color	33.3%	-23.8%	Yellow	48.7%	Lower

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Crete Academy - English Learner Progress Indicator - 2023-2024

Student Group	Charter ELPAC Participation Rate	Charter Color	Charter EL Progress Rate	Charter Change	State Color	State EL Progress Rate	Charter to State Comparison
English Learner	---	No Performance Color	65.0%	31.7%	Orange	45.7%	Higher

Data Sources: CA School Dashboard

--- As of the writing of this report, the 2024 Dashboard Participation Rate has not been publicly released

- f. College/Career Indicator
Not applicable
- g. Chronic Absenteeism Indicator
In 2022 and 2023, on the Chronic Absenteeism Indicator, the charter school's rate of chronic absenteeism was lower than the state for All Students, and for all numerically significant student groups. In 2024, the charter school's rate of chronic absenteeism was higher than the state for All Students, and for two of five numerically significant student groups.
- h. Graduation Indicator [HS only]
Not applicable
- i. Suspension Rate Indicator
In 2022, 2023, and 2024, the charter school's percentage of students suspended at least once was lower than the state for All Students, and for all numerically significant student groups.
- j. Dashboard Local Indicators
Staff also considered the Local Indicators (e.g., Basic: Teachers, Instructional Materials, Facilities; Implementation of Academic Standards; Parent and Family Engagement; Local Climate Survey; Access to a Broad Course of Study) which were all reported as "Not Met" in 2023 and "Met" in 2024.
- k. Reclassification Rates
As of the writing of this report, reclassification data for 2021-2022 and 2022-2023 have not been published by the state.
- l. Additional Information
Not applicable

V. ANNUAL PERFORMANCE-BASED OVERSIGHT RESULTS

In accordance with Education Code section 47604.32, the District's Charter Schools Division (CSD) conducts at least one school site visit each year where the CSD evaluates charter school performance in the following four categories: Governance; Student Achievement and Educational Performance; Organizational Management, Programs, and Operations; and Fiscal Operations. Charter schools are rated in each category based on information and evidence gathered at the time of the annual performance-based oversight visit following a four-point rubric: (4) *Accomplished*, (3) *Proficient*, (2) *Developing*, and (1) *Unsatisfactory*. Please see below for Crete Academy outcomes on its annual oversight evaluation reports for the last two years.

a. Governance

Oversight Ratings/Concerns	
2022-2023	<i>Proficient</i>
2023-2024	<i>Developing</i>
Concerns	For more information, please refer to the <i>Findings of Fact in Support of Denial of the Renewal Charter Petition for Crete Academy</i> for more details.

b. Student Achievement and Educational Performance

Oversight Ratings/Concerns	
2022-2023	<i>Developing</i>
2023-2024	<i>Unsatisfactory</i>
Concerns	In 2023-2024, Crete earned a rating of <i>Unsatisfactory</i> based on student academic performance on the CA School Dashboard Indicators.

c. Organizational Management, Programs, and Operations

Oversight Ratings/Concerns	
2022-2023	<i>Proficient</i>
2023-2024	<i>Proficient</i>
Concerns	No unresolved issues pending.

d. Fiscal Operations

Oversight Ratings/Concerns	
2022-2023	<i>Proficient</i>
2023-2024	<i>Developing</i>
Concerns	The rating of <i>Developing</i> in 2023-2024 was primarily due to audit findings reported in Crete Academy's 2022-2023 independent audit report. See further details in the VII Fiscal Management and Performance section below. Additionally, the CSD noted the school's consistently delayed responses and submissions of CSD requested oversight items, among other issues. Crete Academy provided its response and documentation that reported the steps they had taken and will continue to take to address the noted concerns. The CSD will continue to monitor these areas as part of its ongoing oversight in the current term.

VI. **VERIFIED DATA**

A charter school in the low performance category shall not be renewed. (Ed. Code, § 47607.2(a)(1).) However, a chartering authority may renew a low performing charter school only upon making written factual findings, among other findings, that there is clear and convincing evidence, demonstrated by verified data, showing the charter school's achieved measurable increases in academic achievement, or strong postsecondary outcomes. (Ed. Code, § 47607.2(a)(4).)

Pursuant to Education Code section 47607.2(c)(2), the State Board of Education (SBE) established criteria to define verified data and identified an approved list of valid and reliable assessments. Charter schools submitting verified data must adhere to the state-approved criteria.

For more information, please refer to the *Findings of Fact in Support of Denial of the Renewal Charter Petition for Crete Academy*.

VII. **FISCAL MANAGEMENT AND PERFORMANCE**a. Fiscal Condition

Crete Academy's fiscal condition is positive.

	2019-2020 (Audited Actuals)	2020-2021 (Audited Actuals)	2021-2022 (Audited Actuals)	2022-2023 (Audited Actuals)	2023-2024 (Unaudited Actuals)
Net Assets	\$187,163	\$756,821	\$1,233,717	\$313,468	\$331,594
Net Income/Loss	\$164,717	\$569,658	\$476,896	\$(920,249)*	\$18,126
Transfers In/Out	\$0	\$0	\$0	\$0	\$0
Prior Year Adjustment(s)	\$0	\$0	\$0	\$0	\$0
Norm Enrollment**	191	200	204	301	329

*Per Crete Academy leadership, the net loss reported for Fiscal Year 2022-2023 was primarily due to the increase in student enrollment of approximately 97 (or 47%), which contributed to the increase in certificated and non-certificated personnel (and the related costs) that exceeded the state revenues received) as well as additional facilities costs for leasehold improvements incurred in Fiscal Year 2022-2023.

Crete Academy reported 283 Norm Enrollment for Fiscal Year 2024-2025). Crete Academy proposes to decrease its enrollment capacity to 355 for its renewal charter term. See Section **I. ACTION PROPOSED above. Please see additional information under “Other Significant Fiscal Information.”

- b. 2022-2023 Independent Audit Report
 Audit Opinion: Unmodified/Unqualified
 Material Weaknesses: None Reported
 Deficiencies/Findings: Yes
 Lack of a Going Concern: None Reported

A significant financial statements-related deficiency and a state awards-related audit finding were disclosed in Crete Academy’s 2022-2023 independent audit report, as outlined below:

(1) Financial Statements - Year-End Financial Closing Process

Crete Academy’s auditor disclosed this finding as a significant deficiency and that there was “a delay in the year-end financial closing process that created the need for several adjustments recorded after reporting of the unaudited actuals for the 2022-2023 fiscal year,” primarily related to the implementation of the new lease standard (FASB ASC 842). According to the audit report, Crete Academy responded, “There was a mid-year change in consultants for business services as well as a direct change in general ledger accounting software that created irregularities. Implementation of the new lease standard required additional time to work with a consultant.” Crete Academy’s corrective action plan includes working closely with its back office services provider to ensure the lease implementation requirement is met by the required timeline, having the lease implementation included in its financial system, and continuing to rely on its internal documentation and reporting of financial transactions, so should there be a back office services provider change and/or other needs, school staff would have proper documentation to use.

(2) State Awards - Attendance Reporting

Crete Academy's auditor disclosed that "the ADA reported on the P-2 and annual attendance reports did not agree to the underlying attendance data within the student information system utilized for attendance accounting." The audit report indicated that Crete Academy's underreported P-2 attendance resulted in a net fiscal impact due to the school of \$54,190. According to the audit report, Crete Academy responded, "Attendance data was updated in the student information system and was not communicated to personnel responsible for attendance reporting." Crete Academy stated that it would reconcile all quarterly ADA submission reports before finalizing and submitting to LAUSD, and that it would also work with its auditors mid-year to review prior to attendance submissions for accuracy.

The CSD will continue to monitor these issues as part of the oversight process in the current charter term, including reviewing Crete Academy's 2023-2024 independent audit report for implementation of its corrective action plans.

c. Other Significant Fiscal Information

Crete Academy's student enrollment declined from 329 in Fiscal Year 2023-2024 to 283 in Fiscal Year 2024-2025 per the Norm Enrollment data for the respective years. Crete Academy projects 355 students for Fiscal Year 2024-2025 in the budget submitted with its renewal petition. This projection is overstated by 72 students or approximately 25%, compared to 283 students reported in Charter School's 2024-2025 Norm Enrollment. The school continues to project 355 students for its renewal charter term, covering Fiscal Years 2025-2026 and 2026-2027, representing a 25% increase from Fiscal Year 2024-2025. This raises concerns about the feasibility of the enrollment projections and, as a result, the soundness of the budget for the renewal charter term.

ATTACHMENT B

Crete Academy

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Academic Performance - English Language Arts

This report shows the performance levels for a single state indicator, English Language Arts, for all student groups. It also shows how the current year (status, DFS) compares to prior years (change) for each state indicator. Status and change each have five possible levels, which are displayed with the data for each indicator. A single asterisk (*) and a single dash (-) shows that the student group has fewer than 11 students and is not reported for privacy reasons. For student groups with 11-29 students or do not have at least 30 students with scores in the current and prior year, status and change are reported, and no performance level (color) will be reported. A double dash "---" means that data is not currently available. Note: Charter Schools are treated as schools (not LEAs) when it comes to reporting Foster Youth and Homeless student groups. Charter schools will need at least 30 or more Foster Youth, or 30 or more Homeless students, to receive a status level for each student group.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

ELA (Grades 3-8 and Grade 11) Academic Indicator - CA School Dashboard Indicator																				
RG	BD	Location Code	School	Student Group	2022 Number of Students with Scores	School 2022 Average DFS	School 2022 Status Level	State 2022 Average DFS	State 2022 Status Level	School to State DFS Comparison	2023 Number of Students with Scores	School 2023 Performance Level (color)	School 2023 Average DFS	School 2023 Change	School 2023 Change Level	State 2023 Performance Level (color)	State 2023 Average DFS	State 2023 Change	State 2023 Change Level	School to State DFS Comparison
S	1	7550	Crete Academy	All Students	106	-106.2	Very Low	-12.2	Low	Lower	146	Orange	-94.2	12	Increased	Orange	-13.6	-1.4	Maintained	Lower
				American Indian or Alaska Native	0	--	--	-49.3	Low	--	0	--	--	--	--	Orange	-47.9	2	Maintained	--
				Asian	0	--	--	63	Very High	--	0	--	--	--	--	Blue	61.8	-1.2	Maintained	--
				Black or African American	62	-108.4	Very Low	-57.7	Low	Lower	97	Orange	-97.6	11.7	Increased	Orange	-59.6	-2	Maintained	Lower
				English Learner	17	-124.1	No Performance Level	-61.2	Low	--	20	No Color	-95.8	28.3	Increased Significantly	Orange	-67.7	-6.5	Declined	--
				Filipino	0	--	--	42.9	High	--	0	--	--	--	--	Green	44	1.1	Maintained	--
				Foster Youth	*	-	No Performance Level	-85.6	Very Low	--	*	No Color	--	--	No Change Level	Red	-89.2	-2.5	Maintained	--
				Homeless Youth	15	-138.8	No Performance Level	-62.9	Low	--	20	No Color	-124.5	--	Increased Significantly	Orange	-67.9	-5	Declined	--
				Latino	44	-110.1	Very Low	-38.6	Low	Lower	48	Orange	-88.6	21.4	Increased Significantly	Orange	-40.2	-1.7	Maintained	Lower
				Native Hawaiian or Pacific Islander	0	--	--	-29.1	Low	--	0	--	--	--	--	Orange	-32.5	-3.4	Declined	--
				Socioeconomically Disadvantaged	99	-106.3	Very Low	-41.4	Low	Lower	138	Orange	-95.8	10.5	Increased	Orange	-42.6	-1.2	Maintained	Lower
				Students with Disabilities	*	-	No Performance Level	-97.3	Very Low	--	13	No Color	-150.5	--	No Change Level	Red	-96.3	1.8	Maintained	--
				Two or More Races	*	-	No Performance Level	25.1	High	--	0	No Color	--	--	No Change Level	Green	24.3	-0.8	Maintained	--
				White	*	-	No Performance Level	21.9	High	--	*	No Color	--	--	No Change Level	Green	20.8	-1.2	Maintained	--

Participation Rate Report below displays the percent of students tested by content area. The Every Student Succeeds Act requires districts and schools to test at least 95 percent of all students and student groups in English language arts and mathematics. It also requires states to factor the participation rate into the Academic Indicator. For any local educational agency (LEA), school, or student group with less than 95 percent of students tested, the ESSA requires a penalty to be applied to the Academic Indicator. To meet this federal requirement, California assigns the Lowest Obtainable Scale Score (LOSS) to each student needed to bring the participation rate of the school, district, and/or student group to 95 percent. The LOSS assigned to each of these students who did not test will be used in calculating the Distance from Standard (DFS).

ELA Participation Rate By Student Group														
	ALL	American Indian or Alaska Native	Asian	Black or African American	English Learner	Filipino	Foster Youth	Homeless Youth	Latino	Native Hawaiian or Pacific Islander	Socioeconomically Disadvantaged	Students with Disabilities	Two or More Races	White
Percent of students tested in 2022 **	96%	--	--	94%	100%	--	88%	88%	98%	--	96%	100%	100%	100%
Participation Rate Met 2022 *	Yes	--	--	No	Yes	--	No	No	Yes	--	Yes	Yes	Yes	Yes
Percent of students tested in 2023	99%	--	--	99%	100%	--	100%	96%	100%	--	99%	100%	100%	100%
Participation Rate Met 2023	Yes	--	--	Yes	Yes	--	Yes	Yes	Yes	--	Yes	Yes	Yes	Yes

* Note: An asterisk (*) indicates that the student group consists of less than 11 students, the minimum size for reporting.

** Whole number rounding is used for the participation rate.

Data Sources: California School Dashboard Research data files 2023

Crete Academy

Academic Performance - Math

This report shows the performance levels for a single state indicator, Mathematics, for all student groups. It also shows how the current year (status, DFS) compares to prior years (change) for each state indicator. Status and change each have five possible levels, which are displayed with the data for each indicator. A single asterisk (*) and a single dash (-) shows that the student group has fewer than 11 students and is not reported for privacy reasons. For student groups with 11-29 students or do not have at least 30 students with scores in the current and prior year, status and change are reported, and no performance level (color) will be reported. A double dash "--" means that data is not currently available. Note: Charter Schools are treated as schools (not LEAs) when it comes to reporting Foster Youth and Homeless student groups. Charter schools will need at least 30 or more Foster Youth, or 30 or more Homeless students, to receive a status level for each student group.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Math (Grades 3-8 and Grade 11) Academic Indicator - CA School Dashboard Indicator																				
RG	BD	Location Code	School	Student Group	School 2022 Number of Students with Scores	School 2022 Average DFS	School 2022 Status Level	State 2022 Average DFS	State 2022 Status Level	School to State DFS Comparison	School 2023 Number of Students with Scores	School 2023 Performance Level (color)	School 2023 Average DFS	School 2023 Change	School 2023 Change Level	State 2023 Performance Level (color)	State 2023 Average DFS	State 2023 Change	State 2023 Change Level	School to State DFS Comparison
S	1	7550	Crete Academy	All Students	110	-101.1	Very Low	-51.7	Low	Lower	146	Red	-107.9	-6.8	Declined	Orange	-49.1	2.6	Maintained	Lower
				American Indian or Alaska Native	0	--	--	-90.4	Low	--	0	--	--	--	--	Yellow	-87.3	4.6	Increased	--
				Asian	0	--	--	48.4	Very High	--	0	--	--	--	--	Blue	50.8	2.3	Maintained	--
				Black or African American	64	-106.3	Very Low	-106.9	Very Low	Higher	97	Red	-113.1	-6.8	Declined	Red	-104.5	2.6	Maintained	Lower
				English Learner	17	-115.4	No Performance Level	-92.0	Low	--	20	No Color	-100.6	14.8	Increased	Orange	-93.4	-1.4	Maintained	--
				Filipino	0	--	--	2.7	High	--	0	--	--	--	--	Green	7.4	4.8	Increased	--
				Foster Youth	*	-	No Performance Level	-126.3	Very Low	--	*	No Color	--	--	No Change Level	Red	-127.4	1.4	Maintained	--
				Homeless Youth	15	-107.2	No Performance Level	-101.8	Very Low	--	20	No Color	-129.4	-15.4	Declined Significantly	Red	-101.3	0.5	Maintained	--
				Latino	45	-95.8	Very Low	-83.4	Low	Lower	48	Red	-96.1	-0.3	Maintained	Orange	-80.8	2.6	Maintained	Lower
				Native Hawaiian or Pacific Islander	0	--	--	-71.3	Low	--	0	--	--	--	--	Orange	-71.3	0.0	Maintained	--
				Socioeconomically Disadvantaged	102	-100.0	Very Low	-84.0	Low	Lower	138	Red	-110.2	-10.2	Declined	Yellow	-80.8	3.2	Increased	Lower
				Students with Disabilities	*	-	No Performance Level	-130.8	Very Low	--	13	No Color	-165.5	--	No Change Level	Orange	-127.3	5.5	Increased	--
				Two or More Races	*	-	No Performance Level	-9.9	Medium	--	*	No Color	--	--	No Change Level	Yellow	-7.4	2.5	Maintained	--
				White	*	-	No Performance Level	-13.4	Medium	--	*	No Color	--	--	No Change Level	Yellow	-11.1	2.3	Maintained	--

Participation Rate Report below displays the percent of students tested by content area. The Every Student Succeeds Act requires districts and schools to test at least 95 percent of all students and student groups in English language arts and mathematics. It also requires states to factor the participation rate into the Academic Indicator. For any local educational agency (LEA), school, or student group with less than 95 percent of students tested, the ESSA requires a penalty to be applied to the Academic Indicator. To meet this federal requirement, California assigns the Lowest Obtainable Scale Score (LOSS) to each student needed to bring the participation rate of the school, district, and/or student group to 95 percent. The LOSS assigned to each of these students who did not test will be used in calculating the Distance from Standard (DFS).

Math Participation Rate By Student Group														
	ALL	American Indian or Alaska Native	Asian	Black or African American	English Learner	Filipino	Foster Youth	Homeless Youth	Latino	Native Hawaiian or Pacific Islander	Socioeconomically Disadvantaged	Students with Disabilities	Two or More Races	White
Percent of students tested in 2022 **	99%	--	--	99%	100%	--	100%	94%	100%	--	99%	100%	100%	100%
Participation Rate Met 2022 *	Yes	--	--	Yes	Yes	--	Yes	No	Yes	--	Yes	Yes	Yes	Yes
Percent of students tested in 2023	99%	--	--	99%	100%	--	100%	96%	100%	--	99%	100%	100%	100%
Participation Rate Met 2023	Yes	--	--	Yes	Yes	--	Yes	Yes	Yes	--	Yes	Yes	Yes	Yes

* Note: An asterisk (*) indicates that the student group consists of less than 11 students, the minimum size for reporting.

** Whole number rounding is used for the participation rate.

Data Sources: California School Dashboard Research data files 2023

Crete Academy

English Learner Progress Indicator (ELPI)

This report shows the percentage of current English learner (EL) students making progress towards English language proficiency at their school. The English Learner Progress Indicator (ELPI) relies on the results of the Summative English Language Proficiency Assessment (ELPAC), including Summative Alternate ELPAC results, to determine EL student progress. For the EL students taking the Summative ELPAC, those who increase an ELPI level or maintain ELPAC Level 4 are counted as making progress towards English language proficiency. ELPI Change measures the rate at which schools are improving their ability to move their EL students towards English language proficiency. It is the difference between the prior year Status and the current year Status. A single asterisk (*) and a single dash (-) shows that the student group has fewer than 11 students and is not reported for privacy reasons. For student groups with 11-29 students or do not have at least 30 students with scores in the current and prior year, status and change are reported, and no performance level (color) will be reported. A double dash "--" means that data is not currently available.

Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

English Learner Progress Indicator - CA School Dashboard Indicator																				
RG	BD	Location Code	School	Student Group	2022 School			2022 State			2023 School				2023 State					
					Number of EL Students with a Performance Level in Both the Current and Prior Year	Percentage of English Learners making progress towards English proficiency	Status Level	Percentage of English Learners making progress towards English proficiency	Status Level	School to State ELPI Comparison	Number of EL Students with a Performance Level in Both the Current and Prior Year	School 2023 Performance Level (color)	Percentage of English Learners making progress towards English proficiency	School 2023 Change	School 2023 Change Level	State 2023 Performance Level (color)	Percentage of English Learners making progress towards English proficiency	State 2023 Change	State 2023 Change Level	School to State ELPI Comparison
S	1	7550	Crete Academy	English Learner	14	57.1%	High	50.3%	Medium	--	21	No Color	33.3%	-23.8%	Declined Significantly	Yellow	48.7%	-1.6%	Maintained	--

[Districts and schools that do not meet the 95 percent participation rate on the Summative ELPAC and Summative Alternative ELPAC and have at least 30 EL students enrolled during the testing window \(February 1 to May 31\) will receive a modified ELPI rate on the California School Dashboard \(Dashboard\). For each district and school that does not meet the 95 percent target, the minimum number of students needed to reach a participation rate of at least 95 percent is determined. The resulting number of students will be counted as not making progress in the current ELPI Status calculation.](#)

ELPAC Participation				
Year	Number of EL Student Enrolled	Number of EL Students Tested	Percent of EL Students Tested	Participation Rate Met
2022	18	17	94.4%	No
2023	31	29	93.5%	No

Note: Schools that do not meet the 95 percent participation rate on the Summative ELPAC and Summative Alternative ELPAC and have at least 30 EL students enrolled during the testing window (February 1 to May 31) will receive a modified ELPI rate on the California School Dashboard (Dashboard).

* Note: An asterisk (*) indicates that the student group consists of less than 11 students, the minimum size for reporting.

Data Sources: California School Dashboard Research data files 2023

2022 Student English Language Acquisition Results		
The percentage of current EL students who progressed at least one ELPI level, maintained ELPI level 4, maintained lower ELPI levels (i.e., levels 1, 2L, 2H, 3L, or 3H), or decreased at least one ELPI Level.		
School		
Crete Academy		State
ELs Who Progressed at Least One ELPI Level	57.1%	47.5%
ELs Who Maintained ELPI Level 4	0.0%	2.8%
ELs Who Maintained ELPI Level 1, 2L, 2H, 3L, 3H	28.6%	31.4%
ELs Who Decreased at Least One ELPI Level	14.3%	18.3%

2023 Student English Language Acquisition Results		
The percentage of current EL students who progressed at least one ELPI level, maintained ELPI level 4, maintained lower ELPI levels (i.e., levels 1, 2L, 2H, 3L, or 3H), or decreased at least one ELPI Level.		
School		
Crete Academy		State
ELs Who Progressed at Least One ELPI Level	35.0%	46.4%
ELs Who Maintained ELPI Level 4	0.0%	2.4%
ELs Who Maintained ELPI Level 1, 2L, 2H, 3L, 3H	55.0%	32.7%
ELs Who Decreased at Least One ELPI Level	10.0%	18.6%

Crete Academy

Chronic Absenteeism

This report shows the percentage of students in Kindergarten through grade eight who were absent 10 percent or more of the school year. For most state indicators, the desired outcome is to have a high percentage of performance in the current year. However, chronic absenteeism has a reverse goal of having the lowest percentage of students chronically absent in the current year. Current and prior year data is compared to see whether a school made improvement (i.e., had a lower rate of Chronic Absenteeism in 2023 than it did in 2022) or did worse (i.e., had a higher rate in 2023). Taken together, current year data and its comparison with prior year data will give a performance level (color). A single asterisk (*) and a single dash (-) shows that the student group has fewer than 11 students and is not reported for privacy reasons. For student groups with 11-29 students or do not have at least 30 students with scores in the current and prior year, status and change are reported, and no performance level (color) will be reported. A double dash "--" means that data is not currently available.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Chronic Absenteeism - CA School Dashboard Indicator																				
R G	B D	Locati on Code	School	Student Group	Number of students enrolled who meet criteria	School 2022 Chronic Absenteeism Percentage	School 2022 Status Level	State 2022 Chronic Absenteeis m Percentage	State 2022 Status Level	School to State Chronic Absenteeis m	Number of students enrolled who meet criteria	School 2023 Performanc e Level (color)	School 2023 Chronic Absenteeis m	School 2023 Change	School 2023 Change Level	State 2023 Performanc e Level (color)	State 2023 Chronic Absenteeism Percentage	State 2023 Change	State 2023 Change Level	School to State Chronic Absenteeis m
S	1	7550	Crete Academy	All Students	237	6.8%	Medium	30.0%	Very High	Lower	377	Green	4.5%	-2.2%	Declined	Yellow	24.3%	-5.7	Declined Significantl y	Lower
				American Indian or Alaska Native	0	--	--	42.9%	Very High	--	0	--	--	--	--	Yellow	36.1%	-6.8	Declined Significantl y	--
				Asian	*	--	No Performanc e Level	11.5%	High	--	0	--	--	--	--	Yellow	10.1%	-1.4	Declined	--
				Black or African American	143	9.1%	Medium	42.9%	Very High	Lower	235	Green	6.8%	-2.3%	Declined	Yellow	36.4%	-6.5	Declined Significantl y	Lower
				English Learner	20	0.0%	No Performanc e Level	33.6%	Very High	--	28	No Color	0.0%	0.0%	Maintained	Yellow	26.3%	-7.3	Declined Significantl y	--
				Filipino	0	--	--	16.2%	High	--	0	--	--	--	--	Yellow	13.8%	-2.4	Declined	--
				Foster Youth	11	0.0%	No Performanc e Level	42.1%	Very High	--	15	No Color	0.0%	0.0%	Maintained	Yellow	33.6%	-8.5	Declined Significantl y	--
				Homeless Youth	28	3.6%	No Performanc e Level	45.1%	Very High	--	74	No Color	2.7%	-0.9%	Declined	Yellow	38.7%	-6.4	Declined Significantl y	Lower
				Latino	85	3.5%	Low	35.8%	Very High	Lower	130	Blue	0.8%	-2.8%	Declined	Yellow	28.4%	-7.4	Declined Significantl y	Lower
				Native Hawaiian or Pacific Islander	0	--	--	43.9%	Very High	--	0	--	--	--	--	Yellow	37.6%	-6.3	Declined Significantl y	--
				Socioeconomically Disadvantaged	210	7.6%	Medium	37.4%	Very High	Lower	348	Green	4.9%	-2.7%	Declined	Yellow	29.9%	-7.5	Declined Significantl y	Lower
				Students with Disabilities	12	8.3%	No Performanc e Level	39.6%	Very High	--	30	No Color	0.0%	-8.3%	Declined	Yellow	33.1%	-6.5	Declined Significantl y	Lower
				Two or More Races	*	--	No Performanc e Level	25.1%	Very High	--	*	No Color	0.0%	0.0%	No Change Level	Yellow	21.6%	-3.5	Declined Significantl y	--
				White	*	--	No Performanc e Level	21.9%	Very High	--	*	No Color	0.0%	0.0%	No Change Level	Yellow	18.5%	-3.5	Declined Significantl y	--

Data Sources: California School Dashboard Research data files 2023

Crete Academy

Suspension Rate Indicator

This report shows the number of students who have an aggregate suspension of at least one full day. A student is counted as suspended in the suspension rate only once regardless of multiple suspensions or multiple days of suspension. For most state indicators, the desired outcome is a high percentage of performance in the current year and an increase from the prior year. However, for the Suspension Rate indicator, the desired outcome is a low rate in the current year and a decline from the prior year. Current and prior year data is compared to see whether a school made improvement (i.e., had a lower rate of suspension in 2022-23 than it did in 2021-22) or did worse (i.e., had a higher rate in 2022-23 than in 2021-22). Taken together, current year data and its comparison with prior year data will give a performance level (color). A single asterisk (*) and a single dash (-) shows that the student group has fewer than 11 students and is not reported for privacy reasons. For student groups with 11-29 students or do not have at least 30 students with scores in the current and prior year, status and change are reported, and no performance level (color) will be reported. A double dash "--" means that data is not currently available.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

Suspension Rate Indicator - CA School Dashboard Indicator																				
RG	BD	Location Code	School	Student Group	Number of Students	School 2022 Percentage of Students suspended at least once	School 2022 Status Level	State 2022 Percentage of Students suspended at least once	State 2022 Status Level	School to State Suspension Rate Percentage Comparison	Number of Students	School 2023 Performance level (color)	School 2023 Percentage of Students suspended at least once	School 2023 Change	School 2023 Change Level	State 2023 Performance level (color)	State 2023 Percentage of Students suspended at least once	State 2023 Change	State 2023 Change Level	School to State Suspension Comparison
S	1	7550	Crete Academy	All Students	247	0.0%	Very Low	3.1%	Medium	Lower	389	Blue	0.0%	0.0%	Maintained	Orange	3.5%	0.4%	Increased	Lower
				American Indian or Alaska Native	0	--	--	6.4%	High	--	0	--	--	--	--	Orange	7.4%	1.0%	Increased	--
				Asian	*	--	No Performance Level	0.9%	Very Low	--	0	--	--	--	--	Green	1.1%	0.2%	Maintained	--
				Black or African American	147	0.0%	Very Low	7.9%	High	Lower	241	Blue	0.0%	0.0%	Maintained	Red	8.8%	0.9%	Increased	Lower
				English Learner	20	0.0%	No Performance Level	3.2%	Medium	--	28	No Color	0.0%	0.0%	Maintained	Orange	3.7%	0.5%	Increased	--
				Filipino	0	--	--	1.2%	Low	--	0	--	--	--	--	Green	1.3%	0.1%	Maintained	--
				Foster Youth	12	0.0%	No Performance Level	12.4%	Very High	--	16	No Color	0.0%	0.0%	Maintained	Red	13.6%	1.2%	Increased	--
				Homeless Youth	28	0.0%	No Performance Level	5.5%	High	--	79	No Color	0.0%	0.0%	Maintained	Orange	6.5%	1.0%	Increased	Lower
				Latino	91	0.0%	Very Low	3.3%	Medium	Lower	132	Blue	0.0%	0.0%	Maintained	Orange	3.8%	0.5%	Increased	Lower
				Native Hawaiian or Pacific Islander	0	--	--	4.5%	Medium	--	0	--	--	--	--	Orange	4.9%	0.4%	Increased	--
				Socioeconomically Disadvantaged	218	0.0%	Very Low	4.0%	Medium	Lower	360	Blue	0.0%	0.0%	Maintained	Orange	4.5%	0.5%	Increased	Lower
				Students with Disabilities	12	0.0%	No Performance Level	5.4%	High	--	32	No Color	0.0%	0.0%	Maintained	Orange	5.9%	0.5%	Increased	Lower
				Two or More Races	*	--	No Performance Level	2.9%	Medium	--	11	No Color	0.0%	--	No Change Level	Orange	3.3%	0.4%	Increased	--
				White	*	--	No Performance Level	2.6%	Medium	--	*	No Color	--	--	No Change Level	Yellow	2.9%	0.2%	Maintained	--

Data Sources: California School Dashboard Research data files 2023

Crete Academy

Enrollment Report

This report displays CALPADS K-12 enrollment number and percentages of select student groups. Annual enrollment consists of the number of students primarily enrolled on Census Day (the first Wednesday in October). This information was submitted by local educational agencies (LEAs) and charter schools to the California Department of Education (CDE) as part of the annual Fall 1 data submission in the California Longitudinal Pupil Achievement Data System (CALPADS). These data were reviewed and certified in CALPADS as being accurate by authorized district or school personnel. In order to certify data in CALPADS, authorized district or charter school personnel are required to review the accuracy of all data associated with the applicable CALPADS submission. The California Department of Education collects some data on GATE programs through the California Longitudinal Pupil Achievement Data System (CALPADS); however, this information is submitted by LEAs on a voluntary basis and it wouldn't necessarily be accurate as per CDE. Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/ds/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

2023-2024 Enrollment by Ethnicity and Student Group																					
RG	BD	Loc Code	School	Enrollment	F/R Meal	GATE	American Indian or Alaska Native	Asian	Black or African American	English Learner	Filipino	Foster Youth	Homeless	Latino	Migrant Education	Native Hawaiian or Pacific Islander	Not Reported	Socio-economically Disadvantaged	Students with Disabilities	Two or More Races	White
S	1	7550	Crete Academy	342	86.8%	2.0%	0.6%	0.0%	54.4%	7.3%	0.0%	2.6%	21.1%	30.4%	0.0%	0.0%	13.7%	87.7%	8.2%	0.6%	0.3%
Statewide				5,837,690	61.7%	N/A	0.4%	9.9%	4.9%	18.4%	2.2%	0.5%	3.6%	56.1%	0.8%	0.4%	1.1%	62.7%	13.7%	4.6%	20.3%
Los Angeles Unified				529,902	80.7%	11.0%	0.1%	3.4%	7.3%	20.1%	1.7%	0.6%	2.1%	73.8%	0.2%	0.1%	1.8%	81.3%	14.8%	2.0%	9.8%

2022-2023 Enrollment by Ethnicity and Student Group																					
RG	BD	Loc Code	School	Enrollment	F/R Meal	GATE	American Indian or Alaska Native	Asian	Black or African American	English Learner	Filipino	Foster Youth	Homeless	Latino	Migrant Education	Native Hawaiian or Pacific Islander	Not Reported	Socio-economically Disadvantaged	Students with Disabilities	Two or More Races	White
S	1	7550	Crete Academy	330	92.1%	3.6%	0.0%	0.0%	63.0%	7.3%	0.0%	3.3%	15.2%	35.5%	0.0%	0.0%	0.0%	92.7%	8.5%	0.9%	0.6%
Statewide				5,852,544	59.9%	N/A	0.4%	9.5%	4.7%	19.0%	2.2%	0.5%	3.2%	56.1%	0.7%	0.4%	2.2%	61.5%	13.1%	4.3%	20.1%
Los Angeles Unified				538,295	81.0%	11.1%	5.9%	3.4%	7.4%	21.3%	1.6%	0.7%	1.7%	74.2%	0.1%	0.2%	1.5%	82.0%	14.1%	2.0%	9.7%

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/ds/filesenr.asp>

Crete Academy

RECLASSIFICATION RATES

This reports shows a two year comparison of the number of English Learners (ELs) on Census Day, the number of students reclassified since the prior Census Day, and the reclassification rate for each specified year. The reclassification rate, displayed in percentage, is calculated by dividing the number reclassified by the number of prior year ELs.

Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

RG	BD	Loc Code	School	Year	Students Redesignated FEP	School	State	School to State RFEP Comparison
S	1	7550	Crete Academy	2021-2022*	2020-2021 Number of English Language Learners	--	--	--
					2021-2022 Number of Students Reclassified	--	--	
					2021-2022 Reclassification Rate	--	--	
				2022-2023*	2021-2022 Number of English Language Learners	--	--	--
					2022-2023 Number of Students Reclassified	--	--	
					2022-2023 Reclassification Rate	--	--	

Note: *Reclassification data for 2021-2022 and 2022-2023 has not been published by the State as of the creation of this data set. After the California Department of Education releases the 2021-2022 and 2022-2023 Annual Reclassification (RFEP) Counts and Rates this tab will be updated accordingly.

A double dash "--" means that data is not currently available.

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/ad/filesreclass.asp>

Crete Academy

Long-Term English Learners (LTEL) and "At-Risk"

Note: The "EL Total" column in this report displays the summed total of the disaggregated English Learner (EL) data in the four columns under the "English Learners" heading. The "Total (Ever-EL)" column displays the summed total of the data in the "RFEP" column plus the data in the four columns under the "English Learners" heading OR the data in the "EL Total" column, but not both. The percent values displayed in this report are calculated as a percent of the "Total (Ever-EL)" which fully and more accurately considers what happens to all EL students over time, including those who are Reclassified Fluent English Proficient (RFEP). Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/sd/sd/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

RG	BD	Loc Code	School	English Learners	2022-2023				2023-2024			
					School		State		School		State	
					Enrollment	Percent	Enrollment	Percent	Enrollment	Percent	Enrollment	Percent
S	1	7550	Crete Academy	LTEL 6+ Years	0	0.0%	226,535	11.1%	0	0.0%	211,218	18.1%
				At-Risk 4-5 Years	7	18.9%	144,190	7.1%	5	13.9%	136,190	9.6%
				EL 0-3 Years	14	37.8%	505,487	24.8%	16	44.4%	519,652	26.0%
				EL 4+ Years Not At-Risk or LTEL	3	8.1%	236,323	11.6%	4	11.1%	207,773	10.4%
				EL total	24	64.9%	1,112,535	54.5%	25	69.4%	1,074,833	53.8%
				RFEP	13	35.1%	927,723	45.5%	11	30.6%	924,460	46.2%
				Total (Ever)	37	100.0%	2,040,258	100.0%	36	100.0%	1,999,293	100.0%

Data Source: Data Quest, Student and School Downloadable Data Files <https://www.cde.ca.gov/ds/ad/filesltel.asp>

Crete Academy

Students with Disabilities Report

This report displays the K-12 enrollment and the number of K-12 students with disabilities total, by incidence category, and by eligibility as reported on the Census Day (First Wednesday in October) CALPADS Fall 1 Certified Student Profile List Report (Report 8.1) submitted by LEAs (Local Education Agencies). LEAs are required to "certify" specified data during submission windows. The CDE uses certified data for state and federal reporting and to develop accountability metrics. Once data are certified by an LEA following the close of the Amendment Window, they are "frozen" and cannot be amended. Note: Students with disabilities counts and percentages in this report may be higher or lower for some schools when comparing this report counts with 2021-22 Enrollment by Student Group counts posted in DataQuest by the CDE due to the accuracy of all data associated with the applicable CALPADS submission. CALPADS certification is a two-step process with Level-2 certification reserved for the district superintendents, charter school administrators, or their designees. High incidence eligibilities are indicated by an asterisk (*). Source: Data collected by the California Department of Education (CDE) through the California Longitudinal Pupil Achievement Data System (CALPADS), California School Dashboard, and testing vendor. Aggregate data files are provided by the CDE – Data Reporting Office at <http://www.cde.ca.gov/ds/ds/filesenr.asp> and California School Dashboard System of Support <https://www.cde.ca.gov/ta/ac/cm/>. Please note: There may be slight differences with some of the information in this report and with what is displayed in Dataquest and CA Dashboard due to changes in file modifications such as Date Modified, Date Posted, other data updates by the testing vendor and updates in CALPADS.

2023-2024 Special Education Enrollment

RG	BD	Location Code	School	OCT 2023 Enroll #	Sp Ed Enroll #	Sp Ed Enroll %
S	1	7550	Crete Academy	342	28	8.2%
Statewide				5,837,690	799,980	13.7%
Los Angeles Unified				529,902	79,906	14.8%

2022-2023 Special Education Enrollment

RG	BD	Loc Code	School	OCT 2022 Enroll #	Sp Ed Enroll #	Sp Ed Enroll %
S	1	7550	Crete Academy	330	28	8.5%
Statewide				5,852,544	765,169	13.1%
Los Angeles Unified				538,295	75,935	14.1%

2023-2024 Special Education Enrollment

RG	BD	Loc Code	School	% High Incidence	% Low Incidence	# AUT	# DB	# DEAF	# ED	# EMD	# HOH	# ID	MD	# OHI*	# OI	# SLD*	# SLI*	# TBI	# VI
S	1	7550	Crete Academy	89.7%	10.3%	3	0	0	0	0	0	0	0	7	0	7	12	0	0
Los Angeles Unified				66.7%	33.3%	19,082	6	200	1,178	0	988	3,410	978	11,302	543	30,274	11,688	66	189

RG	BD	Loc Code	School	% High Incidence	% Low Incidence	# AUT	# DB	# DEAF	# ED	# EMD	# HOH	# ID	MD	# OHI*	# OI	# SLD*	# SLI*	# TBI	# VI
S	1	7550	Crete Academy	92.9%	7.1%	1	0	0	1	0	0	0	0	6	0	10	10	0	0
Los Angeles Unified				68.3%	31.6%	16,427	5	226	1,143	1	994	3,495	354	10,342	1,065	29,411	12,139	64	248

Key			
AUT	Autism	OHI	Other Health Impairment
DB	Deaf-Blindness	OI	Orthopedic Impairment
DEAF	Deafness	SLD	Specific Learning Disability
ED	Emotional Disturbance	SLI	Speech or Language Impairment
EMD	Established Medical Disability	TBI	Traumatic Brain Injury
HOH	Hard of Hearing	VI	Visual Impairment
ID	Intellectual Disability	MD	Multiple Disabilities

Data Source: CALPADS 8.1 FALL 1 Certified Report This information was submitted by local educational agencies (LEAs) and charter schools to the California Department of Education (CDE) as part of the annual Fall 1 data submission in the California Longitudinal Pupil Achievement Data System (CALPADS).

Crete Academy

Crete Academy - English Language Arts Indicator - 2023-2024

Student Group	Charter Participation Rate	Charter Color	Charter ELA (DFS)	Charter Change	State Color	State ELA (DFS)	Charter to State Comparison (DFS)
All Students	Met	Red	-102.6	-8.4	Orange	-13.2	Lower
Black or African American	Met	Red	-104.0	-6.4	Orange	-58.9	Lower
Latino	Met	Red	-98.3	-9.7	Orange	-39.3	Lower
Homeless	Met	No Performance Color	-101.5	23.0	Red	-70.4	Lower
Socioeconomically Disadvantaged	Met	Red	-101.3	-5.5	Orange	-40.9	Lower

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

Crete Academy - Math Indicator - 2023-2024

Student Group	Charter Participation Rate	Charter Color	Charter Math (DFS)	Charter Change	State Color	State Math (DFS)	Charter to State Comparison (DFS)
All Students	Met	Red	--110.8	-10.6	Orange	-47.6	Lower
Black or African American	Met	Red	-112.3	0.8	Red	-102.2	Lower
Latino	Met	Red	-106.8	-10.6	Orange	-79.2	Lower
Homeless	Not Met	No Performance Color	-107.6	21.7	Red	-106.0	Lower
Socioeconomically Disadvantaged	Met	Red	-109.4	0.8	Orange	-78.2	Lower

Data Sources: CA School Dashboard Research Files (<https://www.cde.ca.gov/ta/ac/cm/dashboardresources.asp?tabsection=3>)

**FINDINGS OF FACT IN SUPPORT OF DENIAL OF THE
RENEWAL CHARTER PETITION FOR
CRETE ACADEMY
BY THE LOS ANGELES UNIFIED SCHOOL DISTRICT**

BOARD OF EDUCATION REPORT
January 14, 2025

I. INTRODUCTION

On October 17, 2024, Crete Academy (also referred to herein as, “Charter School” or “Petitioners”) submitted a renewal petition application to the Los Angeles Unified School District (“LAUSD” or “District”) seeking to serve up to 355 students in grades TK-6 for a two-year term (July 1, 2025 to June 30, 2027). (See Exhibit 1, Crete Academy Renewal Petition.) Charter School currently operates on two private sites: 6103 Crenshaw Blvd., Los Angeles, CA 90043, and 1729 W. Martin Luther King Jr. Blvd, Los Angeles, CA 90062, which are served by Board District 1 and Region South.

In accordance with the Charter Schools Act (Ed. Code § 47600 *et seq.*) and the adopted *LAUSD Policy and Procedures for Charter Schools* (“LAUSD policy” or “District policy”), LAUSD’s Board of Education (“Board”) has 90 days upon receipt of the renewal petition to either grant or deny the renewal petition unless an extension of an additional 30 days is mutually agreed upon by the parties. No later than 60 days the LAUSD Board must hold a public hearing to consider the level of support for the renewal petition by teachers employed by the District, other employees of the District, and parents. At the public hearing at which the Board will either grant or deny the charter, the petitioners have equivalent time and procedures to present evidence and testimony to respond to District staff recommendation and findings. The LAUSD Board must publish all staff recommendations, including the recommended findings regarding the renewal petition at least 15 days before the public hearing at which the LAUSD Board will either grant or deny the renewal petition.

Based on a comprehensive review of the renewal petition application and the record of performance of Crete Academy, as described in greater detail below, staff has determined that Charter School has not met the requirements set forth in Education Code sections 47605, 47607 and 47607.2 and therefore recommends denial of the renewal petition.

II. STANDARD OF REVIEW FOR RENEWAL PETITIONS

Upon submission, District staff comprehensively reviews each renewal petition application to determine whether the charter school has met the requirements for renewal set forth in Education Code sections 47605, 47607, and 47607.2. The renewal criteria prescribed in Education Code sections 47607 and 47607.2 requires a three-pronged analysis:

Criterion 1:

The Charter Schools Act provides that renewals are governed by the standards and criteria described in Education Code section 47605 applicable to initial petitions. The first criterion considered in reviewing a renewal petition requires an analysis of the following:

- Whether the petition includes a sound educational program;
- Whether the petition contains a reasonably comprehensive description of the 15 elements required for petitions;
- Whether the petition contains an affirmation of each of the conditions described in Education Code section 47605(e); and
- Whether the charter school is likely to successfully implement the program set forth in the petition. Education Code section 47607(b) provides that renewals are governed by the standards and criteria described in section 47605 applicable to initial petitions. (The LAUSD Board may not consider the community impact analysis or District fiscal analysis in determining whether to grant or deny a renewal petition.)

While Criterion 1 is similar to the criteria for a new petition, for renewal petitions, there is more information and data regarding past performance since the initial petition for establishment of the charter school was granted. Thus, soundness of the educational program and capacity for implementation are assessed through the past performance of the existing charter school as indicators of likely future performance, including any applicable benchmarks that have been established. The LAUSD Board will examine the charter school's record in four key areas of charter school performance:

- 1) Governance
- 2) Student Achievement and Educational Performance
- 3) Organizational Management, Programs and Operations
- 4) Fiscal Operations

As part of its analysis, the LAUSD Board of Education is to assess the extent to which charter school governing board members and staff have successfully implemented the terms of their charter, addressed deficiencies, and demonstrated capacity to continue to do so in the future based on evidence of past performance.¹

Criterion 2:

The LAUSD Board is required to consider the charter school's performance on the California School Dashboard accountability indicators. Education Code sections 47607 and 47607.2 prescribe three-tiers of performance classification in which a charter school falls within one of the following categories - "high," "middle," or "low" performing. The state will publish an annual list of charter schools and their performance classification.

¹ See LAUSD policy, pp. 28-29.

The three-tier classification considers a charter school's performance on the California School Dashboard accountability indicators, with an emphasis on the measurements of academic performance. "Measurements of academic performance" refers to the state indicators included on the California School Dashboard that are based on statewide assessments in the California Assessment of Student Performance and Progress System (CAASPP), or any successor system, English Learner Progress Indicator (ELPI), or any successor system, and the College/Career Indicator (CCI). A charter school submitting a renewal petition must include in its application all evidence and data related to the charter school's performance on the California School Dashboard.

Low Performing Charter Schools

A charter school designated as "Low performing" shall not be renewed. (Ed. Code, § 47607.2(a)(1).) A charter school is considered "Low performing" if either of the following apply for the two consecutive years immediately preceding renewal:

- (1) The charter school has received the two lowest performance levels schoolwide on all the state indicators included in the evaluation rubrics adopted pursuant to Section 52064.5 for which it receives performance levels; or
- (2) For all measurements of academic performance, the charter school has received performance levels schoolwide that are the same or lower than the state average and, for a majority of subgroups performing statewide below the state average in each respective year, received performance levels that are lower than the state average.

The LAUSD Board may renew a Low performing charter school **only upon** making **both** of the following written factual findings:

- (1) The charter school is taking meaningful steps to address the underlying cause(s) of its low performance, and those steps are reflected, or will be reflected, in a written plan adopted by the governing body of the charter school; and
- (2) The Board shall consider whether there is clear and convincing data, demonstrated by verified data², showing either of the following:
 - a. The charter school achieved measurable increases in academic achievement, as defined by at least one year's progress for each year in school, or
 - b. Strong postsecondary outcomes, as defined by college enrollment, persistence, and completion rates equal to similar peers. (Ed. Code, §47607.2 (a)(4)).

The LAUSD Board shall only consider verified data adopted by the State Board of Education pursuant to Education Code section 47607.2(c). Effective January 1, 2021, pursuant to Education Code section 47607.2(c)(2), the State Board of Education adopted criteria to define verified data and identified an approved list of valid and reliable assessments.³

² "Verified data" means data derived from nationally recognized, valid, peer-reviewed, and reliable sources that are externally produced. (Ed. Code, § 47607.2(c)(2).)

³ <https://www.cde.ca.gov/sp/ch/verifdatacrit.asp>

Staff's review of Charter School's submitted materials will be based on verified data sources and related information adopted by the State Board of Education (Ed. Code, § 47607.2(c)(3)). Charter schools submitting verified data for this purpose must adhere to the state-approved criteria.⁴

A Low performing charter school may only be renewed for a period of two years. (Ed. Code, § 47607.2(a)(6).)⁵

Criterion 3:

Notwithstanding Criterion 1 and 2, the LAUSD Board will also consider whether the charter school's enrollment or dismissal practices are discriminatory as grounds for nonrenewal. (Ed. Code, § 47607(e).) Additionally, the LAUSD Board shall consider whether the charter school has substantial fiscal or governance factors as grounds for nonrenewal. (Ed. Code, § 47607(e).)

Specifically, the LAUSD Board may deny renewal of any charter petition, regardless of whether the charter school satisfies the high, middle, or low performing criteria, upon a finding that either:

(1) The charter school is demonstrably unlikely to successfully implement the program set forth in the renewal petition due to either:

- (a) Substantial fiscal factors, or
- (b) Substantial governance factors.

Pursuant to the District policy, substantial fiscal factors may include, but are not limited to, issues related to the charter school's fiscal solvency, mismanagement of funds, cash flow concerns, or outstanding financial liabilities owed to the District and/or others (e.g., contractual obligations, judgments/settlements, unpaid bills or debts, fee-for-service arrangements, facilities related costs, Prop. 39 over-allocated space reimbursements, etc.). Substantial governance factors may include, but are not limited to, issues related to the retention of faculty (such as school leadership and teachers) which rise to the level of disruption of delivery of educational programs; conflicts of interest; or, violations of the Brown Act or California Public Records Act.

(2) The charter school is not serving the pupils who wish to attend.

Upon a finding that the charter school is not serving all pupils who wish to attend, LAUSD must identify evidence supporting this finding, including aggregate data reflecting pupil enrollment patterns at the charter school. (Ed. Code, § 47607(d).)⁶

III. FINDINGS OF FACT IN SUPPORT OF DENIAL

Based on a comprehensive review of the Crete Academy renewal petition application and Charter School's record of academic performance, District staff recommends that the LAUSD Board deny

⁴ <https://www.cde.ca.gov/sp/ch/verifdatacrit.asp>

⁵ Id., pp. 34-35.

⁶ Id., pp. 37-38.

the renewal petition and adopt these *Findings of Fact In Support of Denial of the Renewal Charter Petition for Crete Academy* based on the following ground(s):

- Charter School shall not renew as a Low performing charter school based on performance indicators and pursuant to the statutory renewal framework. (Ed. Code § 47607.2(a).) (Criterion 2)
- Petitioners are demonstrably unlikely to successfully implement the program set forth in the petition. (Ed. Code § 47605(c)(2).) (Criterion 1)

A. Crete Academy shall not renew as a Low performing charter school. (Ed. Code § 47607.2(a).) (Criterion 2)

Charter School has been identified by the California Department of Education (CDE) as a “Low performing” charter school.⁷ As outlined in the findings of fact in this Report, and the Exhibits attached, which are hereby incorporated into this finding by this reference, for the two applicable measurements of academic performance⁸ - English Language Arts (ELA) and Math, Charter School demonstrated performance levels for All Students and for all numerically significant student groups that are lower than the state average.

Further, the District has determined that Charter School has not taken meaningful steps to address the underlying causes of low performance; and, there is no clear and convincing evidence, demonstrated by verified data, that the school achieved measurable increases in academic achievement, as defined by at least one year’s progress for each school year; or, strong postsecondary outcomes equal to similar peers. (Ed. Code, §47607.2(a)(4).)

1. Academic Performance Analysis

As context, the state utilizes the colors received on all state indicators to determine the performance classification for charter schools on the state’s California School Dashboard. Staff’s recommendation for non-renewal has considered the schoolwide performance and performance of numerically significant student groups served by Charter School on the state and local indicators. Charter School did not attain measurable increases in academic achievement schoolwide and for the majority of the numerically significant student groups based on the California School Dashboard.

In addition to the state and local indicators, the recommendation considered whether there was clear and convincing evidence showing Charter School demonstrated measurable increases in academic achievement, as defined by at least one year’s progress in each year in the school, and strong postsecondary outcomes, as defined by college enrollment, persistence, and completion rates equal to similar peers (if applicable).

⁷ The list of charter schools and their respective performance categories, as determined by the criteria outlined in AB 1505, published by CDE’s Charter Schools Division is available at <https://www.cde.ca.gov/sp/ch/cspformcategory.asp>.

⁸ The English Learner Progress Indicator was not numerically significant and the College and Career Indicator is not applicable to the grade levels served by the charter school.

2. Charter School's Application Was Insufficient To Merit Additional Written Factual Findings for Renewal

Pursuant to the requirements of Education Code section 47607.2, upon determining that the charter school shall not renew based upon being identified as Low performing by the state based on Criterion 2, the District may renew the petition only upon making both of the following written factual findings:

- (A) The charter school is taking meaningful steps to address the underlying cause(s) of low performance, which are or will be written in a plan adopted by the governing body of the Charter School; and
- (B) There is clear and convincing evidence, demonstrated by verified data, showing either:
 - (i) The charter school achieved measurable increases in academic achievement, as defined by at least one year's progress for each year in school; or
 - (ii) Strong postsecondary outcomes equal to similar peers. *[Not applicable to Charter School]*

For reasons, including those outlined below, the District is unable to make the factual findings to meet both of the above requirements to recommend renewal of Charter School's petition.

a. Charter School's Written Plan Does Not Address Underlying Cause(s) of Low Performance

Charter School submitted an "Action Plan" to the District that was approved by the Crete Academy Governing Board at its meeting on October 10, 2024. Charter School's Action Plan ("Plan") is a table that lists various items under headings of "Action, Responsible Party, Training/Professional Development, Assessment Tool, Timeline, and Evidence," and does not include meaningful steps Charter School is taking regarding improved student performance. Nor does the Plan identify or address the underlying cause(s) of Charter School's low performance. Rather, the table lists 29 "Action" items correlated to the CSD's Annual Performance-Based Oversight report with the majority being related to compliance in Governance. The CSD's Annual Performance-Based Oversight report's purpose is satisfy the annual legal requirement to evaluate the standard operation of charter schools. The CSD's annual report structure is not designed or intended to demonstrate the "meaningful steps" a charter school is taking to "address the underlying causes of low performance." Therefore, actions in Crete Academy's plan, such as, "Academic Committee holds agendized meetings and analyzes data and instructional practices," these actions simply demonstrate typical systems and operational practices of charter schools in general. (See Exhibit 2, Crete Academy Action Plan.)

b. Charter School's Verified Data Does Not Provide Clear and Convincing Evidence of Measurable Increases in Academic Achievement.

In addition to considering whether Charter School is taking meaningful steps to address the underlying cause(s) of low performance, which are or will be written in a plan adopted by the governing body of Charter School, the District must also consider whether Charter School has provided clear and convincing evidence, *demonstrated by verified data*, showing that Charter School achieved measurable increases in academic achievement, as defined by at least one year's progress for each year in school.

The verified data provided by Charter School does not provide clear and convincing evidence showing Charter School achieved measurable increases in academic achievement, as defined by at least one year's progress for each year in school.

The District's review of the documentation provided by Crete Academy as verified data found the following:

- All of the STAR Growth Reports were generated on the same day at around the same time, October 30, 2024, between 4:12 p.m.–5:10 p.m. According to the publisher, STAR Renaissance, assessment data does not roll-over from year to year and the publisher shared that it resets annually every year around June 30. Therefore, the 2021-2022 STAR Growth Reports should have been generated by or before June 30, 2022. The same rule would apply to the 2022-2023 and 2023-2024 STAR Growth Reports.

By not generating the reports within the requisite timeline, Charter School's verified data only provides performance data in Reading and Math for the 283 currently enrolled students for all three years, and not the students that were actually assessed in each year. This makes Crete Academy's verified data incomplete. Additionally, data provided by Crete Academy as part of its verified data submission includes an assessment, STAR Early Literacy, that has not been adopted by the State Board of Education as verified data. Crete Academy included Fall to Spring STAR Early Literacy data for 2021-2022, 2022-2023, and 2023-2024 reports.

- The data submitted by Crete Academy as verified data did not contain the information necessary to make a determination of academic performance. The reports provided either did not meet participation rates or were unable to calculate the rates based on missing information.

Therefore, the evidence provided was not clear and convincing, nor did it show that the charter school achieved measurable increase in academic achievement. (See Exhibit 3, Crete Academy Verified Data.)

B. Charter School is demonstrably unlikely to successfully implement the program set forth in the petition. (Ed. Code § 47605(c)(2).) (Criterion 1)

The District also assessed the past performance of Charter School as indicators of likely future performance. As stated in the LAUSD policy, the LAUSD Board of Education will assess the extent to which Charter School governing board members and staff have successfully implemented the terms of their charter, addressed deficiencies, and demonstrated capacity to continue to do so based on evidence of past performance.⁹

In addition to the findings of fact provided above regarding Charter School’s academic performance, which by this reference are hereby incorporated in support of this denial finding, the following findings of fact support that the Petitioners are demonstrably unlikely to successfully implement the program set forth in the petition.

1. Crete Academy has failed to effectively monitor and address academic achievement progress over the course of the charter term.

- The CDE has identified Crete Academy as a Low performing charter school under Criterion 2.
 - Status is the same, or below, the statewide average for “All Students,”
 - At least two student groups have academic performance measures, and
 - A majority of its student groups, who historically perform below the statewide average, have “Status” scores below the statewide average on the academic indicators.
- In the previous seven years, Crete Academy’s Annual Performance-Based Oversight Visit reports show Charter School did not earn a rating higher than 2 (*Developing*) in Student Achievement and Educational Performance and earned a rating of 1 (*Unsatisfactory*) in 2023-2024.

School Year	Student Achievement and Educational Performance
2017-2018	No Rating (first year of operation)
2018-2019	No Rating (school failed administer CAASPP)
2019-2020	2
2020-2021	2
2021-2022	No Rating (State testing not required)
2022-2023	2
2023-2024	1

⁹ See LAUSD policy, pp. 28-29.

- 2. The Crete Academy Governing Board and School Leadership are demonstrably unlikely to successfully implement the program considering the consistent and ongoing areas of non-compliance that have necessitated tiered intervention over the course of the charter term.**

For additional context, pursuant to applicable legal and District policy requirements, CSD's ongoing oversight assesses a school's performance and utilizes a tiered intervention model when necessary to address and respond to concerns or challenges related to a charter school's governance, programs, operations, organization, and fiscal management. Accordingly, the District has utilized its tiered intervention model to address and respond to concerns or issues that have occurred during Crete Academy's charter term. Below are examples of the tiered intervention ("Notices") that the District has issued Crete Academy to ask the charter school to provide additional information or documents to further assess a concern(s), or request that the charter school take required corrective measures to cure specified actions by the charter school. There are concerns with the ongoing operations as noted in the following list of Notices as part of ongoing oversight. This record raises concerns.

- Communications to Charter School regarding ongoing areas of non-compliance include:
 - o 3/16/2018 Notice of Concern re: Schoolwide Suspension Rate and Disproportionality of Student Group Suspensions
 - o 6/5/2018 Notice of Concern re: Governance Structure and Due Process
 - o 6/29/2018 Notice to Cure re: Failure to Administer CAASPP Summative Assessments Schoolwide
 - o 10/12/2018 Notice to Cure re: Schoolwide Suspension Rate
 - o 5/22/2019 Notice to Cure re: The Hiring of Crete Academy's Governing Board President's Spouse as the School's Director of Wellness
 - o 6/12/2019 Notice to Cure re: Teacher Credentialing and Brown Act Non-Compliance
 - o 3/1/2021 Notice of Concern re: Application Programming Interface (API) for MiSiS
 - o 9/5/2023 Notice of Concern re: Crete Academy Offering Currently Unauthorized Grade Levels
 - o 10/4/2023 Uniform Complaint (UCP) re: Inappropriate Charging of Pupil Fees
 - o 10/4/2023 Notice to Cure re: Inappropriate Charging of Pupil Fees for Summer School and Late Pickups)
 - o 10/6/2023 Notice of Concern re: Brown Act Compliance
 - o 2/21/2024 Notice to Cure Follow Up re: Inappropriate Charging of Pupil Fees and UCP process
 - o 6/27/2024 Notice of Concern re: Fiscal Operations (e.g., employee tuition and student loan reimbursements, and its consistently delayed responses and submissions of CSD requested oversight items)
 - o 8/27/2024 Notice to Cure Follow Up re: Fiscal Operations with the same concerns above

In response to the Notices, as well as follow-up communications from the CSD, Charter School provided information to share their remediations, and the CSD continues to monitor the school through oversight. (See Exhibit 4, Crete Academy Tiered Intervention Notices.)

IV. RECOMMENDATION

Based on the foregoing, District staff recommends that the Board of Education deny the Crete Academy renewal petition. The recommendation for denial is based upon on findings that Charter School does not qualify for renewal as a Low performing charter school based on performance indicators. Further, as demonstrated by Charter School's low academic performance and findings related to other performance indicators, Petitioners are demonstrably unlikely to successfully implement the educational program set forth in the petition.

Since Charter School has been designated as Low performing, the Board shall not renew the charter unless it makes both written factual findings identified in Education Code section 47607.2 (a)(4). Since Charter School's application was insufficient to merit additional written factual findings for renewal, the District is unable to make the factual findings needed to meet both of the requirements to recommend renewal of the Charter School's petition, it is recommended that the Board adopt these *Findings of Fact in Support of Denial of the Renewal Charter Petition for Crete Academy* as the Board's written findings of fact in support of the denial.

Exhibits available for perusal at the following link:

https://drive.google.com/drive/folders/1Wm5K9CHiXWPxKaaB_sEltd-jwBzta1cr?usp=sharing